

Amendment No. 2 to SB2228

White
Signature of Sponsor

AMEND Senate Bill No. 2228*

House Bill No. 2533

by deleting Section 5 and substituting instead the following:

SECTION 5. Tennessee Code Annotated, Section 49-11-805, is amended by deleting "division of vocational education" in subsection (a) and substituting "division of college, career, and military readiness" and by deleting "division of vocational technical education" in subsection (b) and substituting "division of college, career, and military readiness".

AND FURTHER AMEND by deleting Section 11 and substituting instead the following:

SECTION 11. Tennessee Code Annotated, Section 49-6-3004(i), is amended by deleting "An LEA" wherever it appears in the subsection and substituting "An LEA or public charter school", by deleting "an LEA" wherever it appears in the subsection and substituting "an LEA or public charter school", and by deleting "the LEA" wherever it appears in the subsection and substituting "the LEA or public charter school".

AND FURTHER AMEND by deleting "state college or university maintaining a training school" wherever it appears in the amendatory language of Section 16 and substituting "state college or university maintaining a training school pursuant to § 49-8-105".

AND FURTHER AMEND by deleting "state colleges or universities maintaining a training school, private colleges or universities maintaining a training school" in the amendatory language of Section 20 and substituting "state colleges or universities maintaining a training school pursuant to § 49-8-105, private colleges or universities maintaining a training school pursuant to § 49-2-105".

AND FURTHER AMEND by deleting Section 34 and substituting instead the following:

SECTION 34. Tennessee Code Annotated, Section 49-6-2202, is amended by deleting "website of the department of education" in subsection (a) and substituting "commission's website" and by deleting the following language in subsection (g):

The department of education, including the commissioner of education, or a deputy or assistant commissioner of education, serving as the secretary of the commission, may, at the direction of the commission, assist the commission in the performance of the commission's duties by providing recommendations to the commission, but shall not, when assisting the commission in the performance of the commission's duties or when training newly appointed members of the commission or members of advisory panels, attempt to improperly influence or interfere with:

and substituting:

The department of education, including the commissioner of education, or a deputy or assistant commissioner of education, serving as an ex officio, non-voting member of the commission, is not responsible for carrying out the statutory duties of the commission but shall, at the request of the commission, assist the commission in the performance of the commission's duties by providing recommendations to the commission, but shall not, when assisting the commission in the performance of the commission's duties or when training newly appointed members of the commission or members of advisory panels, attempt to improperly influence or interfere with:

AND FURTHER AMEND by deleting Section 39 and substituting the following:

SECTION 39. Tennessee Code Annotated, Section 49-6-2302(a), is amended by deleting "school board" in subdivisions (a)(1) and (2) and substituting "local board of education or public charter school governing body".

AND FURTHER AMEND by deleting Section 59 and substituting the following:

SECTION 59. Tennessee Code Annotated, Section 49-16-213, is amended by deleting subsection (b) and substituting:

(b) In addition to the intervention options available under § 49-1-602, if a virtual school is identified as a priority school pursuant to § 49-1-602, then the LEA must not exceed its enrollment cap specified in § 49-16-211(b) and the virtual school identified as a priority school must not exceed its enrollment for the prior year. The enrollment cap takes effect for the school year immediately following the identification and does not affect students enrolled in the virtual school at the time of the identification.

(c)

(1) If a virtual school is identified as a priority school pursuant to § 49-1-602 for one (1) cycle, then the LEA must close the virtual school for the school year immediately following the identification.

(2) Notwithstanding chapter 3, part 1 of this title, if a virtual school is closed pursuant to this subsection (c), then the Tennessee investment in student achievement formula (TISA) payments for the LEA that established the virtual school must exclude a student who was a member in the virtual school in the prior school year who did not remain a member in the LEA.

(3) If a virtual school is closed pursuant to this subsection (c), then:

(A) Within one (1) calendar week of the closure decision, the virtual school must notify in writing the parents or legal guardians of all students enrolled in the virtual school of the closure decision;

(B) Within thirty (30) days of the closure decision, the department of education must communicate to the parents or legal guardians of all students enrolled in the virtual school of other schools or educational options in which the student is eligible to enroll;

(C) The virtual school must not enroll any new students; and

(D) A contracted nonprofit or for-profit provider of the virtual school must not withhold student records from the LEA or the school to which a virtual school student transfers.

AND FURTHER AMEND by deleting "rules promulgated by the state board of education" in subdivision (b)(2)(B) in the amendatory language of Section 67 and substituting "chapter 6, part 45 of this title".

AND FURTHER AMEND by deleting Sections 19, 22, 28, 30, 60-63, 65, and 69 and renumbering remaining sections accordingly.

AND FURTHER AMEND by inserting the following new section immediately preceding the antepenultimate section and renumbering the subsequent sections accordingly:

SECTION __. Tennessee Code Annotated, Section 49-16-214, is amended by deleting the section and substituting:

(a) An establisher may contract for services with nonprofit and for-profit providers for the operation and management of a virtual school.

(b) The department of education shall maintain and publish on the department's website a list of providers that operated or managed a virtual school pursuant to subsection (a) that was closed pursuant to § 49-16-213(c)(1).